

MINUTES OF THE SECOND MEETING OF COMMITTEE OF CREDITORS OF PREMIER PROTEINS LIMITED (COMPANY UNDER CIRP), HELD ON THURSDAY, OCTOBER 16, 2025 AT 03:30 PM PHYSICALLY TIK TIK TIKKA RESTAURANT STADIUM PARISAR, 95, VIKAS NAGAR NEAR V2 MALL, AB ROAD, DEWAS 455001

The meeting was stated at 03:30 PM & concluded at 04:45 PM

MEMBERS PRESENT

Sr.No.	Name of Person	Representing Creditor	Voting %
1.	Mr. Navin Khandelwal along with team	Resolution Professional	NA
2.	Hemant Vyavahare	Employee dues	10.55%
3.	Achal Kumar Gupta	Employee dues	9.90%
4.	Rajaram Agrawal	Workman dues	5.77%
5.	Kailash Rathore	Workman dues	5.07%
6.	Kailash Chouhan	Workman dues	4.86%
7.	Santosh Kumar Geed	Workman dues	4.78%
8.	Mishrilal Solanki	Workman dues	4.64%
9.	Babulal Tawar	Workman dues	4.46%
10.	Manohardas	Workman dues	4.37%
11.	Gokul Pawar	Workman dues	4.35%
12.	Bheelu Agarwal	Workman dues	4.35%
13.	Anil Raikwar	Workman dues	4.33%
14.	Nagji Ram Malviya	Workman dues	4.28%
15.	Mangilal Davilal	Workman dues	4.11%
16.	Shankar Lal Malviya	Workman dues	4.06%
17.	Rambhau Ganesh	Workman dues	3.74%
18.	None present	Representative from Premier Proteins Limited – Corporate Debtor	NA

AGENDA NO. 1

CHAIRMAN OF THE MEETING

Resolution Professional ('RP') welcomed all the members present at the meeting and informed the members that this is the Second meeting of the Committee of Creditors of M/s Premier Proteins Limited.

“Resolved that Resolution Professional duly appointed by Hon'ble Adjudicating Authority (National Company Law Tribunal), be and is hereby appointed as Chairman of the Second meeting of Committee of Creditors of M/s Premier Proteins Limited as per Regulation 24 of CIRP Regulations 2016”

The CoC took note of the same.

AGENDA NO. 2

ROLL CALL OF MEMBERS PRESENT

The Resolution Professional (RP) invited all the members of the CoC and confirmed that no person other than the members was present in the meeting.

The RP informed the members that, in terms of Section 24 of the Insolvency and Bankruptcy Code, 2016, read with Regulation 16 of the IBBI (CIRP) Regulations, 2016, where the corporate debtor has no financial debt or where all financial creditors are related parties of the corporate debtor, the committee shall be constituted in accordance with the said Regulations. Further, in terms of sub-regulation (2), the committee so formed shall consist of the 18 largest operational creditors by value; provided that if the number of operational creditors is less than 18, the committee shall include all such operational creditors.

In compliance with the above provisions, the Committee of Creditors in this case comprises only 18 highest operational creditors' workman dues and employee's dues.

The RP further confirmed from the CoC members whether they had received the notice of the meeting along with the agenda documents as required under Regulation 21 of the CIRP Regulations, 2016. The CoC members confirmed the receipt of the notice along with the relevant documents.

The RP took note of the same.

AGENDA NO. 3

QUORUM OF THE MEETING

The Chairman informed the members that, in accordance with Regulation 22 of the IBBI (CIRP) Regulations, 2016, a meeting of the Committee of Creditors shall be quorate if members representing at least 33% (thirty-three percent) of the voting rights are present, either in person, through video conferencing, or by other audio and visual means.

He further stated that the requisite quorum being present, the meeting was declared to be in order and the proceedings could duly commence. It was also noted that the required quorum was maintained throughout the meeting.

After due discussion, the following resolution was passed

*“**Resolved that the Quorum is present at the Second meeting of the Committee of Creditors of M/s. Premier Proteins Limited held Thursday, October 16, 2025 as per Regulation 22 of CIRP Regulations 2016.**”*

The CoC took the note of the same.

AGENDA NO. 4

APPROVAL OF MINUTES WITH RESPECT TO 1ST COC MEETING.

Approval of the 1st COC meeting Minutes held on 01st October 2025

The minutes of 1st CoC meeting which was circulated to all the members via e-mail & physical on 03rd October 2025 was approved by the CoC members.

*“**RESOLVED THAT the CoC be & hereby approved without any modification the minutes of 1st CoC meeting shared by the RP via e-mail on 03rd October 2025**”*

The CoC took note of the same

AGENDA NO. 5

TO UPDATE THE PARTICIPANTS ON THE ACTIVITIES UNDERTAKEN BY THE RP TO MANAGE THE AFFAIRS OF CORPORATE DEBTOR FROM THE DATE OF RECEIPT OF THE CIRP COMMENCEMENT ORDER TILL THE DATE OF THE MEETING.

The RP apprised the Committee that as per the statement submitted before the Hon'ble NCLT Indore Bench the corporate debtor contended that the company's performance deteriorated day by day by the end of the financial year 2002 and the company committed defaults in the payments and became a sick industrial undertaking. A reference under the Sick Industrial Companies (Special Provisions) Act, 1985 was made by the Company to the Board for Industrial and Financial Reconstruction (BIFR) and vide order of 21.12.2005, the company was declared a "sick company" and the process of rehabilitation was also started.

Further it is noted that after 2013 there is no commercial activity in the company and has huge accumulated losses in the Company and as on date, the entire substratum of the company has been lost. Also between 2013 to 31.03.2022 the operational activities in the company have come to standstill and there are no business operations for last several financial years resultantly the Corporate Debtor Company has committed defaults.

The CoC took note of the same

AGENDA NO. 6

TO DISCUSS PUBLICATION OF FORM-G AS PER REGULATION 36A OF THE IBBI (INSOLVENCY RESOLUTION PROCESS FOR CORPORATE PERSON) REGULATIONS, 2016.

The RP informed the CoC that, in accordance with Regulation 36A of the CIRP Regulations 2016, the RP is required to publish brief particulars of the invitation for Expression of Interest ("EOI") in Form G at the earliest, but not later than the sixtieth day from the Insolvency Commencement Date ("ICD"), inviting interested and eligible prospective resolution applicants ("PRAs") to submit resolution plans.

The RP further apprised the members that the 60th day from the ICD falls on 31st October 2025. Hence, prior to the publication of Form G, it is necessary to finalise the eligibility criteria for PRAs, along with other terms and conditions for the invitation of EOI and the Request for Resolution Plan (RFRP), in compliance with Regulation 36A of the CIRP Regulations.

The RP also explained in detail the purpose and process of inviting EOIs to the CoC members during the meeting. He further informed that the newspaper(s) for publication of Form G also need to be finalised.

After due discussion, the CoC members agreed to publish the Form G within the prescribed timelines under the Insolvency and Bankruptcy Code, 2016, and authorised the RP to decide the newspaper(s) for publication based on circulation and cost considerations.

Committee of Creditors took notice of the same and after discussions & deliberations, the following resolution was passed & approved during the meeting with 83.61% votes in favour:

Resolution No. 1 | Approval for Publication of Form-G

“RESOLVED THAT pursuant to the provisions of the Insolvency and Bankruptcy Code, 2016 read with regulation 36A of the IBBI (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, the Committee of Creditors (“CoC”) of Premier Proteins Limited hereby approved for publication of Form-G inviting Expressions of Interest (EOI) for the Corporate Debtor, M/s Premier Proteins Limited as a whole.

RESOLVED FURTHER THAT the RP be and is hereby authorized to take all necessary steps, including appointment of agencies, finalization of publication medium(s), and incurring related expenses, for publication of Form-G in accordance with the applicable provisions of the Code and Regulations.

RESOLVED FURTHER THAT all costs and expenses incurred in connection with the publication of Form-G shall form part of the Insolvency Resolution Process Cost (IRPC) in terms of Regulation 31 read with Regulation 34 of the IBBI (Insolvency Resolution Process for Corporate Persons) Regulations, 2016.”

The CoC took the note of the same.

AGENDA NO. 7

TO TAKE NOTE OF SUBMISSION OF NON-DISCLOSURE AGREEMENT FOR INFORMATION MEMORANDUM AS PER REGULATION 36(4) OF THE IBBI (IRP FOR CORPORATE PERSON) REGULATION 2016

The RP informed that as per regulation 36(4) of the CIRP Regulation 2016, the information memorandum will be shared after receiving an undertaking from a member of the committee to the effect that such member or resolution applicant shall maintain confidentiality of the information and shall not use such information to cause an undue gain or undue loss to itself or any other person. All the law related to confidentiality and insider trading shall be complied with. The intellectual property right of the Corporate Debtor shall be protected. The information shall not be shared to any third party without obtaining this type of undertaking. The draft format of undertaking required for this provision is shared via mail and physically to all the CoC members.

The CoC took the note of the same.

AGENDA NO. 8

TO DISCUSS TERMS AND CONDITIONS FOR THE INVITATION FOR EXPRESSION OF INTEREST (EOI) & RFRP TO SUBMIT RESOLUTION PLAN(S) PURSUANT TO REGULATION 36A OF THE IBBI (INSOLVENCY RESOLUTION PROCESS FOR CORPORATE PERSON) REGULATIONS, 2016.

As per Regulation 36A provides for the invitation of expression of interest, wherein the Resolution Professional publish brief particulars of the invitation for expression of interest in Form G at the earliest, not later than 60th day from the insolvency commencement date i.e on or before 31-10-2025, from interested and eligible prospective resolution applicants to submit resolution plans.

The RP informed the CoC that in accordance with the provisions of Regulation 36A CIRP regulation 2016, it is necessary to finalize the terms and conditions of the Expression of Interest (EOI) to determine the eligibility criteria for selection of Prospective Resolution Applicants (PRAs).

The Resolution Professional apprised the CoC of the proposed **Eligibility Criteria** as follows:

Eligibility Criteria:

- **Tangible Net Worth (TNW):** Minimum INR 50 Lakhs in case of Private / Public Limited Company, LLP, Body Corporate, Partnership Firm, Individual, or Trust as per the latest available financial statements as on 31st March 2025.
- **Minimum Asset under Management (AUM) / Funds Deployed:** Minimum INR 5 Crore in the immediately preceding completed financial year.
- **Consortium Applicants:** Minimum Tangible Net Worth (TNW) of INR 50 Lakhs at the consortium level as per the latest available financial statements as on 31st March 2025.

Other Conditions:

- A refundable **Earnest Money Deposit (EMD)** of INR 2.50 Lakhs shall be provided by each Prospective Resolution Applicant.
- The Prospective Resolution Applicant must be eligible to submit a Resolution Plan as per the requirements of the IBC and relevant rules and regulations, including Section 29A of the Code, and must furnish an affidavit confirming the same.
- The eligibility criteria may be amended or modified at any stage at the discretion of the CoC.
- The Successful Resolution Applicant shall furnish or cause to be furnished, an unconditional and irrevocable performance bank guarantee ("PBG" or "Performance Bank Guarantee"), issued by any scheduled commercial bank in India provided that it is acceptable to the Resolution Professional (acting for the CoC), of **an amount equivalent to the 10% of the total Financial Offer** (whether fund based on non-fund based) in favour of the Designated Lender (acting on behalf of the CoC) of "PREMIER PROTIENS LIMITED" (in its capacity as an agent of the CoC and acting on behalf of the Company), within 7 (five) Business Days of issuance of Letter of Intent to the Successful Resolution Applicant, or by way of a electronic transfer/ direct deposit (non-interest bearing) by way of the real time gross settlement system into a bank account nominated by the Designated Lender.

The CoC / Resolution Professional reserves the right to cancel, modify, or reject any expression of interest, bid, or offer at any stage of the CIRP without assigning any reason and without incurring any liability whatsoever.

Committee of Creditors took notice of the same and after discussions & deliberations, the following resolution was passed & approved during the meeting with 83.61% votes in favour:

Resolution No. 2 | Approval of Eligibility Criteria for Prospective Resolution Applicants (PRAs) for Publication of Form-G

***"RESOLVED THAT* the Committee of Creditors ("CoC") hereby approved the eligibility criteria for inviting Expressions of Interest (EOI) from Prospective Resolution Applicants (PRAs) for the Corporate Debtor, M/s Premier Proteins Limited, as presented by the Resolution Professional and detailed hereinabove, in accordance with the provisions of Regulation 36A of the IBBI (Insolvency Resolution Process for Corporate Persons) Regulations, 2016."**

***RESOLVED FURTHER THAT* the Resolution Professional be and is hereby authorized to publish Form-G and take all necessary steps to invite Expressions of Interest as per the approved eligibility criteria."**

The RP took the note of the same.

AGENDA NO. 9

TO DISCUSS THE APPOINTMENT OF THE REGISTERED VALUERS AS PER REGULATION 27 OF THE IBBI (IRP FOR CORPORATE PERSONS) REGULATION 2016.

The RP apprised the CoC that, in accordance with Regulation 27 of the CIRP Regulations, 2016, it is mandatory to appoint Registered Valuers for the valuation of the assets of the Corporate Debtor.

The RP informed that, as per the CIRP timelines, the valuers are required to be appointed by 18th October 2025, being the 47th day from the Insolvency Commencement Date (ICD).

The RP further informed the CoC members that quotations were invited from various valuers under the Securities or Financial Assets (SFA) asset class only, since the Corporate Debtor does not possess any assets under the Land & Building or Plant & Machinery categories.

He further added that, in accordance with the approval granted by the CoC members in the 01st CoC Meeting, he is proceeding with the appointment of two Registered Valuers under the SFA asset class, whose details are mentioned hereunder:

Sr. No.	Name of RV	IBBI Registration No.	Asset Class	Fees
1	CA Madhav Tulsyan	IBBI/RV/11/2021/14174	SFA	Rs 12,000 + OPE*
2	CA Chirag Shah	IBBI/RV/06/2019/11438	SFA	Rs 10,000+GST+OPE*

*The maximum limit for the reimbursement of OPE would be Rs.5,000/-

The CoC took the note of the same.

AGENDA NO. 10

TO TAKE A NOTE OF THE EXPENSES OF RP INCURRED FROM THE DATE OF COMMENCEMENT OF CIRP TILL THE DATE OF THE MEETING IN ACCORDANCE WITH REGULATION 33 OF CIRP REGULATIONS.

The RP informed the CoC that, in accordance with Regulation 31 of the IBBI (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, expenses have been incurred by the RP since his appointment, which are required to be recognized as part of the Insolvency Resolution Process Cost (IRPC).

The details of the CIRP expenses from 28-08-2025 to 14-10-2025 are as follows:

Sr.No.	Particulars	Amount
1.	Fees of the IRP from 01-09-2025 to 30-09-2025	1,18,000
2.	Public announcement - Form A	12,474
3.	LOC filing at NCLT	2,000
4.	INC-28 & other related expenses	1,500
5.	Application for appointment of RP under Section 22(3)(a)	2,000
6.	Valuation expenses	23,600

Strictly Confidential Document

7.	Miscellaneous expenses	1,000
		1,60,574

Committee of Creditors took notice of the same and after discussions & deliberations, the following resolution was passed & approved during the meeting with 83.61% votes in favour:

Agenda Item No. 3| Approval of CIRP Expenses Incurred by the RP

“RESOLVED THAT the Committee of Creditors (“CoC”) hereby approves the CIRP expenses as detailed in the table above, incurred by the Resolution Professional from 28-08-2025 to 14-10-2025.

RESOLVED FURTHER THAT the said expenses shall be treated as Insolvency Resolution Process Cost (IRPC) in accordance with Regulation 31 read with Regulation 34 of the IBBI (Insolvency Resolution Process for Corporate Persons) Regulations, 2016.”

The RP took note of the same.

AGENDA NO. 11

ANY OTHER MATTER WITH THE PERMISSION OF CHAIR

The appointment of the forensic cum transaction auditor as per section 43, 45, 50 and 65 of IBC, 2016.

The RP informed the CoC that, in accordance with the provisions of the Insolvency and Bankruptcy Code, 2016 (“IBC”) and the relevant regulations, it is necessary to appoint a Transaction Auditor for conducting a review of the transactions of the Corporate Debtor to determine whether any Preferential, Undervalued, Fraudulent, or Extortionate (PUFE) transactions have occurred, as contemplated under Sections 43 to 51 and Section 66 of the IBC.

The RP further informed the members that it is proposed to appoint a Transaction Auditor to carry out the said review and submit a report to the RP for further action under the Code, if required. The maximum fee proposed for the Transaction Auditor shall be Rs. 50,000 (Rupees Fifty Thousand only) plus applicable GST, inclusive of out-of-pocket expenses.

Committee of Creditors took notice of the same and after discussions & deliberations, the following resolution was passed & approved during the meeting with 83.61% votes in favour:

Agenda Item No. 4 | Appointment of Transaction Auditor for Determination of PUFE Transactions

“RESOLVED THAT pursuant to the provisions of the Insolvency and Bankruptcy Code, 2016, and the IBBI (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, the Committee of Creditors (“CoC”) hereby approves the appointment of a Transaction Auditor for the purpose of conducting a transaction audit of the Corporate Debtor, M/s Premier Proteins Limited, to identify any Preferential, Undervalued, Fraudulent, or Extortionate transactions as per Sections 43 to 51 and Section 66 of the Code.

RESOLVED FURTHER THAT the maximum fee payable to the Transaction Auditor shall be Rs. 50,000/- (Rupees Fifty Thousand only) plus applicable GST, inclusive of out-of-pocket expenses.

RESOLVED FURTHER THAT the Resolution Professional be and is hereby authorized to finalize

and appoint the Transaction Auditor, execute necessary engagement terms, and take all actions incidental or ancillary thereto for completion of the said assignment.

RESOLVED FURTHER THAT *all costs and expenses incurred in connection with the appointment of the transaction auditor shall form part of the Insolvency Resolution Process Cost (IRPC) in terms of Regulation 31 read with Regulation 34 of the IBBI (Insolvency Resolution Process for Corporate Persons) Regulations, 2016."*

The RP took notice of the same.

VOTE OF THANKS

There being no other matter the Meeting ended with a vote of thanks to the Chairman.

.....S.D.

Navin Khandelwal

RP for Premier Proteins Limited (Company under CIRP)

Registered Office: 206, Navneet Plaza,

Old Palasia, Indore 452018

Reg. no. IBBI/IPA-001/IP-P00703/2017-18/11301

AFA valid till 31-12-2025

Process Specific Email ID: ibc.proteins@gmail.com

IBBI Reg. Email ID: navink25@yahoo.com

Place: Indore

Date: 18-10-2025